PBM Disclosure and Attestation

What the PBM pays your intermediaries, certified by an officer

EDITION 2026.1 · JULY 2026

SENT TO	Each PBM participating in your evaluation or RFP
ASKS FOR	Compensation paid to consultants and intermediaries, ownership and governance conflicts, restrictions on the plan sponsor's access to pricing data, and confirmation that pricing was not shaped by intermediary relationships
COMPANION	PBM Consultant Disclosure and Attestation asks the same questions from the other direction. Send both
ONLINE	nautilushealth.org/pbm · contractxray.com

HOW TO USE THIS TEMPLATE

1. Send this to every PBM in the evaluation, not only the ones you suspect. A disclosure request applied selectively is not a control.
2. Replace every bracketed field, and set a response date that falls before your evaluation begins rather than after.
3. Send the companion consultant version at the same time. Each one is a check on the other, and inconsistent answers are the finding.
4. Have counsel review the certification paragraph before you send it. The signer is certifying accuracy and your reliance on it.
5. Keep the returned attestations. They are part of the record showing how the decision was made.

LETTER TEMPLATE · COPY FROM HERE — FOR THE PBM

Dear [PBM Contact Name],

As part of our pharmacy benefit manager (PBM) evaluation process, and consistent with our fiduciary obligations as the plan sponsor, we are requesting written confirmation and attestation regarding compensation, conflicts of interest, and transparency related to PBM procurement and evaluation.

Please confirm the following:

1. COMPENSATION, PAYMENTS, AND ECONOMIC BENEFITS

Please disclose any and all compensation or economic benefits, whether direct or indirect, that your organization or its affiliates provide or have provided to any consultant, advisor, broker, or intermediary involved in our PBM evaluation, including but not limited to:

- Consulting fees, advisory fees, or administrative fees
- Referral fees, placement fees, or finder’s fees

- Revenue-sharing arrangements, incentive payments, or performance-based compensation
- Data access fees, data-sharing arrangements, or analytics compensation
- Speaker fees, honoraria, sponsorships, marketing support, or educational grants
- Loans, advances, lines of credit, equity-linked compensation, or other financing arrangements
- Any other monetary or non-monetary consideration, whether paid directly or indirectly through affiliates or related parties

Please include compensation or benefits provided in connection with our plan, this RFP, or any broader commercial relationship involving PBM selection or evaluation, whether current or within the past 3 years.

2. OWNERSHIP, GOVERNANCE, AND OTHER CONFLICTS OF INTEREST

Please disclose any relationships or interests that could reasonably be viewed as creating a conflict of interest in connection with our PBM evaluation, including but not limited to:

- Ownership interests, equity holdings, profit-sharing arrangements, or options held by consultants, advisors, or intermediaries in your organization or affiliated entities
- Board memberships, advisory board roles, officer positions, or governance roles involving consultants or intermediaries
- Strategic partnerships, joint ventures, reseller arrangements, or preferred-vendor relationships with consultants or intermediaries
- Any other contractual, financial, or commercial relationships that could influence pricing, proposal structure, or evaluation outcomes

For each disclosed relationship, please describe the nature of the relationship and whether it could influence, or reasonably appear to influence, pricing, proposal terms, or recommendations.

3. DATA ACCESS AND TRANSPARENCY

Please disclose any non-disclosure agreements (NDAs), contractual provisions, or other arrangements that limit or condition our access, as the plan sponsor, to pricing data, pricing methodologies, financial assumptions, rebate mechanics, spread practices, or proposal components.

For each such limitation, please specify:

- The nature and scope of the restriction
- The party imposing the restriction
- Whether information is withheld, summarized, normalized, or otherwise modified before being presented to the plan sponsor

Please confirm whether full underlying pricing and financial mechanics can be made available directly to the plan sponsor upon request.

4. INDEPENDENCE AND INTEGRITY OF PRICING AND PROPOSALS

Please confirm pricing, guarantees, financial terms, and proposal components submitted in response to our RFP:

- Are not influenced by compensation arrangements, revenue-sharing, ownership interests, or referral relationships with consultants or intermediaries
- Are not structured to favor or disadvantage any PBM based on intermediary relationships

- Reflect the same pricing and terms that would be offered directly to the plan sponsor absent intermediary involvement

Please also confirm that no consultant, advisor, or intermediary influenced pricing assumptions, evaluation criteria, scoring methodologies, or presentation of proposal results.

Please provide the disclosures and completed attestation below by [date].

Sincerely,
[Name]
[Title]
[Organization]

PBM: OFFICER ATTESTATION

I certify the information provided is complete, accurate, and not misleading. I acknowledge this disclosure is provided for fiduciary decision-making purposes and the plan sponsor is relying on its accuracy.

Authorized Officer Name: ____
Title: ___
***Organization:* _____**
Signature: ____
Date: _____

About this document. A template for plan sponsors to adapt. Informational and educational purposes only, and not legal, financial, or professional advice. Requesting an attestation does not by itself discharge a fiduciary duty, and the language should be reviewed by qualified counsel before use. © 2026 Nautilus Health Institute.